

		application shall not be granted.” [See CCP § 473(b).] Here, no proposed answer or other proposed pleading has been submitted with the Motion. Therefore, Defense counsel is ordered to appear at the hearing with the proposed pleading. Upon receipt by the Court, the Court will GRANT the motion, vacate the 7/28/2025 default and vacate the default prove up hearing, and order the proposed pleading to be separately filed and served. <i>Moving party to give notice.</i>
101	H&B Collision, Inc. vs. Collision Repair Tools LLC, 23-01345138	Arturo E. Matthews, Jr. (“Moving Attorney”) moves to be relieved as Counsel of Record for Defendants, Collision Repair Tools, LLC and Bryan Robaina. In addition, “[t]he proposed order relieving counsel must be prepared on the Order Granting Attorney’s Motion to Be Relieved as Counsel--Civil (form MC-053) and must be lodged with the court with the moving papers. The order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known.” (California Rules of Court, rule 3.1362(e).) Here, Moving Attorney has not lodged the required proposed order, nor do the proofs of service indicate service of the proposed order on the clients and opposing counsel. (See ROA 143, 145, 183.) Accordingly, the Motion to Be Relieved as Counsel is DENIED without prejudice. Moving attorney may re-file the motion curing the above deficiencies and seek to advance the hearing by ex parte. <i>The moving attorney is to give notice.</i>
102	Sanchez vs. Viana, 24-01412341	Daniel R. Sallus and Adam G. Carpinelli (“Moving Counsel”) moves to be relieved as counsel of record for plaintiff Everardo Sanchez. The motion is GRANTED.